

Court No. - 3

Case :- WRIT - C No. - 15419 of 2022

Petitioner :- Chhote Lal Vishwakarma

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ashwani Kumar Pathak

Counsel for Respondent :- C.S.C.,Rishu Mishra

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

1. Heard learned counsel for the petitioner, learned Standing Counsel for the State-respondents and Shri Rishu Mishra, learned counsel for the respondent nos.1 and 3.

2. This writ petition has been filed praying for the following reliefs :

"A. Issue a writ order or direction in nature of certiorari quashing the demand recovery notice/ citation dated 14/06/2021 issued by the Tehsildar Bansgaon, District- Gorakhpur (respondent no.4) as a demand recovery amount Rs. 2,56,624/=00 and other dues of the electricity (connected annexure no.3 to this writ petition).

B. Issue a writ order or direction in nature of mandamus and direct the respondents not recover demand recovery amount Rs. 2,56,624/=00 and other dues of the with the petitioner during pendency of this writ petition before this Hon'ble court."

3. Learned counsel for the respondent nos.1 and 3/Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

4. In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is **disposed of** giving liberty to the petitioner to submit his objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent no.3 within four weeks from today alongwith a certified copy of this order. In the event, such an objection is submitted within the stipulated period, it shall be decided by the respondent no.3 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

5. For a period of eight weeks or till the disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand/notice.

Order Date :- 31.5.2022

A. V. Singh